

**MASTER SERVICES AGREEMENT
BETWEEN
THE TEXAS A&M UNIVERSITY SYSTEM OFFICES
AND GOREACT**

This Master Services Agreement (“MSA”) is between The Texas A&M University System (the “A&M System”), an agency of the State of Texas, and SpeakWorks, Inc. d/b/a GoReact (“Provider”). The A&M System and Provider hereby agree as follows:

1. SCOPE OF WORK

Provider shall work with members of the A&M System (each a “Member”) to provide the software and services described in Exhibit A.

This MSA is not a contract to perform work for a specific Member but is intended to demonstrate the ability of each Member to contract individually with Provider for the software and services described in Exhibit A. There is no guarantee of Member participation. It is the responsibility of each Member to negotiate an agreement with Provider (each a “Member Agreement”), referencing this MSA, for its specific needs. In the event that a Member and Provider execute a Member Agreement, the GoReact Customer Terms Agreement attached hereto as Exhibit B shall be appended to, and made a part of, such Member Agreement.

2. TERM

This MSA begins upon final execution and will remain in effect for three years unless earlier terminated under Section 4. This MSA may be extended for one additional two-year term upon written agreement of both parties.

3. PAYMENT TERMS

- A. The A&M System is not obligated to pay any costs or fees under this MSA.
- B. Payment terms must be provided in each Member Agreement.

4. DEFAULT AND TERMINATION

- A. For Cause: Either the A&M System or Provider may terminate this MSA effective upon written notice to the other party if the other party materially breaches any term of this MSA and fails to cure such breach within 15 days after receiving written notice of the breach. If the breach is incurable, the non-breaching party may terminate this MSA effective immediately upon written notice to the breaching party.
- B. For Convenience: The A&M System may terminate this MSA upon 30 days’ prior notice to Provider.
- C. Expiration or termination of this MSA will not terminate any Member Agreement.
- D. Provider’s duties under this MSA and any Member Agreement which impose an obligation after expiration or termination of this MSA or the Member Agreement will survive unless otherwise provided in the Member Agreement.

5. ACCESSIBILITY

Provider represents and warrants that the electronic and information resources and all associated information, documentation, and support that it provides to Member under a Member Agreement (collectively, the "EIRs") comply with the applicable requirements set forth in Title 1, Chapter 213 of the Texas Administrative Code and Title 1, Chapter 206, §206.70 of the Texas Administrative Code (as authorized by Chapter 2054, Subchapter M of the Texas Government Code). To the extent Provider becomes aware that the EIRs, or any portion thereof, do not comply, then Provider shall, at no cost to Member, either (1) perform all necessary remediation or (2) replace the EIRs with new EIRs.

6. PUBLIC INFORMATION

- A. Provider acknowledges that the A&M System and Members are obligated to strictly comply with the Public Information Act, Chapter 552, Texas Government Code, in responding to any request for public information pertaining to this MSA or Member Agreement, as applicable, as well as any other disclosure of information required by applicable Texas law.
- B. Upon the A&M System or a Member's written request, Provider shall promptly provide specified contracting information exchanged or created under this MSA or a Member Agreement for or on behalf of the A&M System or the Member.
- C. Provider acknowledges that the A&M System and Members may be required to post a copy of the fully executed MSA and Member Agreement on its website in compliance with Section 2261.253(a)(1), Texas Government Code.
- D. The requirements of Subchapter J, Chapter 552, Texas Government Code, may apply to this MSA and Member Agreements and Provider acknowledges that this MSA and Member Agreements may be terminated if Provider knowingly or intentionally fails to comply with a requirement of that subchapter.

6. DISPUTE RESOLUTION

Provider, the A&M System, and Members (as applicable) shall use the dispute resolution process provided in Chapter 2260, *Texas Government Code*, and the related rules adopted by the Texas Attorney General pursuant to Chapter 2260, to attempt to resolve any claim for breach of contract made by Provider that cannot be resolved in the ordinary course of business. Provider shall submit written notice of a claim of breach of this MSA to Billy Hamilton, Deputy Chancellor and Chief Financial Officer for the A&M System, who will examine Provider's claim and any counterclaim and negotiate with Provider in an effort to resolve the claim. Provider shall submit written notice of a claim of breach of a Member Agreement to the Member's designated official, who will examine Provider's claim and any counterclaim and negotiate with Provider in an effort to resolve the claim.

7. GENERAL PROVISIONS

- A. **Independent Contractor.** Provider is an independent contractor, and neither Provider nor any employee of Provider will be deemed to be an agent or employee of the A&M System or any Member. Neither the A&M System nor any Member will have any responsibility to provide transportation, insurance, or other fringe benefits normally associated with employee status. Provider shall observe and abide by all applicable laws and regulations, policies and procedures, including but not limited to those of the A&M System and Members relative to conduct on its premises.

- B. **Use of Name.** Provider may not use the names or any adaptation of the names of the A&M System, Members, or any of its employees in any way except in factual statements that, in context, are not misleading or imply an endorsement by the A&M System, Members, or its employees.
- C. **Delinquent Child Support Obligations.** A child support obligor who is more than 30 days delinquent in paying child support and a business entity in which the obligor is a sole proprietor, partner, shareholder, or owner with an ownership interest of at least 25% is not eligible to receive payments from state funds under an agreement to provide property, materials, or services until all arrearages have been paid or the obligor is in compliance with a written repayment agreement or court order as to any existing delinquency. The Texas Family Code requires the following statement: "Under Section 231.006, Texas Family Code, the vendor or applicant certifies that the individual or business entity named in this contract, bid, or application is not ineligible to receive the specified grant, loan, or payment and acknowledges that this contract may be terminated and payment may be withheld if this certification is inaccurate."
- D. **Payment of Debt or Delinquency to the State.** Pursuant to Section 2252.903, Texas Government Code, any payments owing to Provider under any Member Agreement may be applied directly toward certain debts or delinquencies that Provider owes the State of Texas or any agency of the State of Texas regardless of when they arise, until such debts or delinquencies are paid in full.
- E. **Not Eligible for Rehire.** Provider shall ensure that employees participating in work for any Member have not been designated by the A&M System as Not Eligible for Rehire as defined in A&M System Policy 32.02, Section 4. Non-conformance to this requirement may be grounds for termination of this MSA.
- F. **Franchise Tax Certification.** If Provider is a taxable entity subject to the Texas Franchise Tax (Chapter 171, *Texas Tax Code*), then Provider certifies that it is not currently delinquent in the payment of any franchise (margin) taxes or that Provider is exempt from the payment of franchise (margin) taxes.
- G. **State Auditor's Office.** Provider understands that acceptance of funds under any Member Agreement constitutes acceptance of the authority of the Texas State Auditor's Office, or any successor agency (collectively, "Auditor"), to conduct an audit or investigation in connection with those funds pursuant to Section 51.9335(c), *Texas Education Code*. Provider shall cooperate with the Auditor in the conduct of the audit or investigation, including without limitation, providing all records requested. Provider shall include this provision in all contracts with permitted subcontractors.
- H. **Entire Agreement.** This MSA and each Member Agreement constitute the sole agreement of the A&M System, Provider, and the applicable Member and supersedes any other oral or written understanding or agreement pertaining to the subject matter of this MSA and the Member Agreement. This MSA may not be amended or otherwise altered except upon the written agreement of both the A&M System and Provider.
- I. **Severability.** Each provision of this MSA and any Member Agreement is severable. If any provision is rendered invalid or unenforceable by statute or regulations or declared null and void by any court of competent jurisdiction, the remaining provisions will remain in full force and effect if the essential terms of this MSA and the Member Agreement remain valid, legal, and enforceable.

- J. **HUB Subcontracting Plan.** It is the policy of the State of Texas and the A&M System to encourage the use of Historically Underutilized Businesses (HUBs) in A&M System contracts, purchasing transactions and through subcontracting opportunities. The goal of the HUB program is to promote equal access and equal opportunity to HUB vendors in A&M System contracting and purchasing.

The HUB Subcontracting Plan (HSP) submitted by Provider and attached will be part of the terms of this MSA. The HSP was submitted as self-performing; however, changes may not be made to the HSP without prior review and approval from the A&M System HUB Program. Provider shall submit to the A&M System HUB Program point of contact a revised HSP for each subcontracting opportunity to be modified.

A&M System HUB Program Contact:

Keith Williams
A&M System HUB Coordinator
Email: soprocurement@tamus.edu
Phone: (979) 458-3265

Member Engagement: If a subcontractor will be used to provide any commodity or service as part of the scope of a Member Agreement, Provider may be required by that Member to make a good faith effort and complete the State of Texas HSP. If there are preexisting agreements in place with companies who will be hired as subcontractors, Provider shall show those companies as subcontractors on the HSP and provide an explanation as to why solicitations were not done, e.g. contractual requirements. If no preexisting agreements with companies who will be hired as subcontractors exist, then Provider shall make a good faith effort according to the HSP instructions.

If Provider determines that Provider will be using a subcontractor, please contact the Member HUB Coordinator for assistance in proper completion of the HSP or any other HSP related questions.

Provider may also be required to submit a HUB Subcontracting Plan (HSP) Prime Contractor Progress Assessment Report (PAR) to any Member that chooses to utilize this MSA. PAR requirements will be defined by each Member Agreement.

- K. **Loss of Funding.** Performance by a Member under a Member Agreement may be dependent upon the appropriation and allotment of funds by the Texas State Legislature (the "Legislature"). If the Legislature fails to appropriate or allot the necessary funds, the impacted Member may issue written notice to Provider and Member may terminate its Member Agreement without further duty or obligation. Provider acknowledges that appropriation of funds is beyond the control of A&M System and Members.
- L. **Governing Law.** The validity of this MSA and Member Agreements and all matters pertaining to this MSA and Member Agreements, including but not limited to, matters of performance, non-performance, breach, remedies, procedures, rights, duties, and interpretation or construction, are governed and determined by the laws of the State of Texas.
- M. **Venue.** Pursuant to Section 85.18, *Texas Education Code*, venue for any suit filed against the A&M System must be in Brazos County, Texas, and venue for any suit filed against a Member must be in the county in which the primary office of the Member's chief executive officer is located.

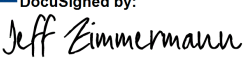
- N. **Non-Waiver.** Provider acknowledges that the A&M System and Members are an agencies of the State of Texas and nothing in this MSA or a Member Agreement waives or relinquishes the A&M System or Member's right to claim such exemptions, privileges, and immunities as may be provided by law.
- O. **Conflict of Interest.** By executing this MSA and each Member Agreement, Provider and each person signing on behalf of Provider certifies, and in the case of a sole proprietorship, partnership or corporation, each party thereto certifies as to its own organization, that to the best of their knowledge and belief, no member of the A&M System or the A&M System Board of Regents, nor any employee, or person, whose salary is payable in whole or in part by the A&M System, has direct or indirect financial interest in the award of this MSA or the Member Agreement, or in the services to which this MSA or the Member Agreement relates, or in any of the profits, real or potential, thereof.
- P. **Prohibition on Contracts with Companies Boycotting Israel.** To the extent that Texas Government Code, Chapter 2271 applies to this MSA and any Member Agreement, Provider certifies that (a) it does not currently boycott Israel; and (b) it will not boycott Israel during the term of this MSA and such Member Agreement. Provider acknowledges this MSA and any Member Agreement may be terminated and payment withheld if this certification is inaccurate.
- Q. **Certification Regarding Business with Certain Countries and Organizations.** Pursuant to Subchapter F, Chapter 2252, Texas Government Code, Provider certifies it is not engaged in business with Iran, Sudan, or a foreign terrorist organization. Provider acknowledges that this MSA and any Member Agreement may be terminated if this certification is or becomes inaccurate.
- R. **Prohibition on Contracts Related to Persons Involved in Human Trafficking.** Under Section 2155.0061, Government Code, Provider certifies that Provider is not ineligible to receive this MSA or any Member Agreement and acknowledges that this MSA and any Member Agreement may be terminated and payment withheld if this certification is inaccurate.
- S. **Records Retention.** Provider shall preserve all contracting information, as defined under Texas Government Code, Section 552.003(7), related to this MSA and any Member Agreement for the duration of this MSA and Member Agreement and for seven years after the conclusion of this MSA and the Member Agreement.
- T. **Order of Precedence.** If there is a conflict between the terms in the body of this MSA and any exhibit, the terms in the body of this MSA will control. If there is a conflict between the terms of this MSA and any Member Agreement, the terms of this MSA will control unless the parties to the Member Agreement expressly agree otherwise, and then only as to that Member Agreement.
- U. **Notices.** Any notice required or permitted under this MSA must be in writing, and will be deemed to be delivered (whether actually received or not) when deposited with the United States Postal Service, postage prepaid, certified mail, return receipt requested, and addressed to the intended recipient at the address set out below. Notice may also be given by regular mail, personal delivery, courier delivery, facsimile transmission, email or other commercially reasonable means and will be effective when actually received. The A&M System and Provider may change its respective notice address by sending to the other party a notice of the new address. Notices must be addressed as follows:

A&M System: The Texas A&M University System
301 Tarrow St., Suite 273
College Station, Texas 77840
Attention: Jeff Zimmermann
Phone: (979) 458-6410
Fax: (979) 458-6250
E-mail: jzimmermann@tamus.edu

Provider: SpeakWorks, Inc., d/b/a GoReact
256 West Center
Orem, UT 84057
Attention: Tom Kilgore
Phone: (801) 717-3499
E-mail: tom@goreact.com

The parties have executed this MSA as of the dates indicated below.

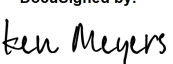
The Texas A&M University System

DocuSigned by:
By 
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Jeff Zimmermann
Director, Procurement & Business Services

9/17/2020 | 22:07:09 CDT

Date

SpeakWorks, Inc., d/b/a GoReact

DocuSigned by:
By 
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Ken Meyers
CEO

9/17/2020 | 16:24:09 PDT

Date